

25CHCV04548 25CHCV04548

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Case Number: 25CHCV04548 Hearing Date: July 10, 2026 Dept: F43

Dept. F43

Hearing Date: 07-10-26

Case # 25CHCV04548, Molano v. Otavio

Perez Fontes

Trial Date: None set.

SPECIAL MOTION TO
STRIKE

MOVING PARTY: Defendant Otavio Peres Fontes

RESPONDING PARTY: Plaintiff Nicole Molano

RELIEF REQUESTED

Order striking the First, Third, and Fourth

Causes of Action from the First Amended Complaint and striking language from paragraph 4 of the Second Cause of Action.

Order awarding defendant attorney's fees and costs.

RULING: Motion is granted. The court awards Defendant attorney fees of \$10,150 and costs of \$460.

SUMMARY OF ACTION

On December 23, 2025, plaintiff Nicole Molano (Plaintiff) filed this action against defendant Otavio Perez Fontes (Defendant), asserting malicious prosecution, retaliation, defamation (slander), and intentional infliction of emotional distress. Plaintiff filed a First Amended Complaint on December 30, 2025. Plaintiff is self-represented.

On June 1, 2026, Defendant filed the instant special motion to strike the First Amended Complaint, seeking to strike the First, Third, and Fourth Causes of Action and striking allegations from the Second Cause of Action: "Filing a knowingly false restraining order on or about October 15, 2025"; "Spreading defamatory claims through court filings and police reports"; and "Attempting to use a restraining order to force Plaintiff to vacate her housing unit, in violation of Civil Code §789.3 and 1940.2." (FAC at p. 3:22, 3:24-25.) Defendant also seeks \$6,850 in attorney fees and \$460 in costs.

Plaintiff filed an opposition on June 3, 2026 and Defendant replied on June 16, 2026.

Plaintiff filed several additional papers, and Defendant filed a response and objections to these additional papers. Because Plaintiff did not seek court permission to file the subsequent papers and filed the documents after Defendant filed and served his reply, the court does not consider any papers filed by the parties after June 16, 2026.

SUMMARY OF ARGUMENTS

Defendant contends Plaintiff's causes of action arise from protected activity: filing a police report and requesting a restraining order. Because these activities are forms of protected speech, Plaintiff's First (malicious prosecution), Third (defamation), and Fourth (intentional infliction of emotional distress) causes of action along with the Second Cause of Action's assertions concerning the same protected activity should be stricken from the First Amended Complaint. Plaintiff cannot prevail on her First Cause of Action (malicious prosecution) because the claim incorporates general allegations concerning protected activity, Defendant had probable cause to file a police report and a request for a restraining order, and Plaintiff cannot demonstrate Defendant maintained his action "with malice." Plaintiff cannot prevail on her Third Cause

of Action (defamation - slander) because the claim incorporates the general allegations, Plaintiff does not identify a single oral or written statement which was allegedly defamatory, and the litigation privilege of Civil Code section 47, subdivision (b) applies to both police reports and court filings. Plaintiff cannot prevail on her Fourth Cause of Action (intentional infliction of emotional distress) because the claim incorporates protected activity (the restraining order request), Plaintiff alleges no other publicly published statements or other statements Defendant supposedly made to her outside court, and Plaintiff fails to allege how the claim made in the restraining order petition rose to the level of being "outrageous and extreme."

In opposition, Plaintiff contends Defendant

falsely asserts her claims solely arise from protected activity and that she cannot prevail on her causes of action.

According to Plaintiff, this matter arises from Defendant's retaliatory conduct after Plaintiff reported his inappropriate and non-consensual touching and attempted to resolve the matter through a pre-litigation settlement communication, which Defendant characterized as extortion and harassment. Plaintiff claims her evidence demonstrates factual disputes showing a likelihood of prevailing on her causes of action. The court record in the restraining order proceeding contradicts Defendant's extortion theory based on Judge Holmes's ruling. Defendant's own conduct after filing the police report and petition for a restraining order – voluntarily calling and texting Plaintiff – demonstrate a reasonable trier of fact could conclude Defendant's actions were inconsistent with the level of claimed fear and distress he now asserts.

REQUESTS FOR JUDICIAL NOTICE

Plaintiff asks the court to take judicial notice of the following documents pursuant to Evidence Code section 452, subdivisions (c) and (d):

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Exhibit A: Copy of the case summary printed on June 9, 2026, for Otavio Peres Fontes v. Nicole Marie Tan Molano, Los Angeles Superior Court, Case No. 25CHRO04041.

The court grants the request pursuant to Evidence Code section 452, subdivision (d).

EVIDENTIARY OBJECTIONS

Defendant raises the following objections to
Plaintiff's evidence:

Declaration of Nicole Molano

Overruled: 3 in part, 6 in part ("and I said she's not
going to believe me I showed her a video and"; "And I said 'yes' and she said";
"and she said"; and "We then spoke about it in Kaleighs room. [sic] The first
thing she said"), 7 in part ("I did ask her again so was it really predatory?"
and "and I said yes he has always been respectful."), 9 in part ("and I have
the text messages from her" and "again"), 11 in part.

Sustained: 1 (failure to sign under penalty of perjury);
2, 3 in part ("it is not . . . housing" and "it was disgusting."), 4, 6 in
part, 7 in part, 8, 9 in part, 10, 11 in part ("He claimed . . . tell them
this."), 12-33.

Exhibit A

Overruled: None.

Sustained: 1.

Exhibit B

Overruled: None.

Sustained: 2.

Exhibit C

Overruled: None.

Sustained: 3.

Exhibit D

Overruled: None.

Sustained: 4.

Exhibit E

Overruled: None.

Sustained: 5.

Exhibit F

Overruled: None.

Sustained: 6.

Exhibit G

Overruled: None.

Sustained: 7.

Exhibit H

Overruled: None.

Sustained: 8.

Exhibit I

Overruled: None.

Sustained: 9.

ANALYSIS

A. Special

Motions to Strike Pursuant to Code of Civil Procedure section 425.16

“A cause of action against a person arising

from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).)

The trial court applies a burden shifting analysis when considering a special motion to strike brought under section 425.16 (the “Anti-SLAPP Statute”). (Soukun v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 278.) First, the defense carries the burden of making a threshold showing that the challenged cause of action arises from “any act of that person in furtherance of the person’s right of petition or free speech under the [federal or state constitution] with a public issue.” (Code Civ. Proc., § 425.16, subd. (b); see Soukun, supra, 39 Cal.4th at p. 278.) Second, and only if the defense meets its threshold burden, the burden will shift to the plaintiff to demonstrate a probability of prevailing on the merits of the claims at issue. (See Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67; Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.)

B. First

Step: Plaintiff’s First, Third, and Fourth Causes of Action arise from Defendant’s protected activity. The Second Cause of Action arises from a mix of protected and unprotected activity.

“To prevail on an anti-SLAPP motion, the movant must first make ‘a threshold showing the challenged cause of action’ arises from an act in furtherance of the right of petition or free speech in connection with a public issue.” (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192.)

1. Protected Activity

An act in furtherance of the right of petition or free speech includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a

legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e)(1)-(4).)

Defendant contends the acts underlying Plaintiff's causes of action – making a police report, filing a petition for an Elder Abuse restraining order, and maintaining Defendant's restraining order petition – are protected activity under Section 425.16, subdivision (e) and *Zamos v. Stroud* (2004) 32 Cal.4th 958.

In opposition, Plaintiff claims her complaint arises from unprotected and protected activity – the filing of police report, the filing of the restraining order request, and Defendant's conduct after filing the police report and the restraining order request.

According to Plaintiff, triable factual disputes concerning Defendant's own post-filing conduct raise issues concerning the sincerity and reasonableness of the claims in Defendant's police report and petition for a restraining order.

“[T]he requirement that the statement or conduct be connected with an issue of public interest—a limitation that, among other things, means that in many cases the statement or conduct will be a part of a public debate and the public therefore will be exposed to varying viewpoints on the issue.” (*Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 898.) “The most commonly articulated definitions of ‘statements made in connection with a public issue’ focus on whether (1) the subject of the statement or activity precipitating the claim was a person or entity in the public eye; (2) the statement or activity precipitating the claim involved conduct that could affect large numbers of people beyond the direct participants; and (3) whether the statement or activity precipitating the claim involved a topic of widespread public interest.

As to the latter, it is not enough that the statement refer to a subject of widespread public interest; the statement must in some manner itself contribute to the public debate.” (*Id.*, citations omitted.)

In the First Amended Complaint's “general allegations,” Plaintiff asserts the following. In October of

2025, Plaintiff confided in Defendant's stepdaughter, licensed therapist Aldercy Denise Velazquez, about Defendant's non-consensual and inappropriate touching. (FAC ¶ 12.) Plaintiff also submitted a lawful pre-litigation civil demand letter addressing the harassment and boundaries. (Id.) Defendant retaliated by filing a knowingly false and baseless police report and a petition for an Elder Abuse restraining order against Plaintiff, seeking to characterize Plaintiff as a threat and to suppress her claims. (Id. ¶ 13.) The restraining order petition was denied for lack of evidentiary support. (Id. ¶¶ 14, 18-19, Exh. B [12/03/25 Minute Order in Otavio Peres Fontes v. Nicole Marie Tan, Los Angeles Superior Court, Case No. 25CHRO02041].) The petition lacked merit; was riddled with fabricated statements, omissions, and manipulated evidence; and filed in bad faith to intimidate and coerce Plaintiff. (Id. ¶ 15.) As a result of the filing of the police report and the petition, Plaintiff suffered reputational harm, emotional trauma, financial losses, and social stigma. (Id. ¶ 16.)

Complaints to the police "made in connection with an official proceeding authorized by law" constitutes protected activity under Section 425.16. (Comstock v. Aber (2012) 212 Cal.App.4th 931, 942 ["The law is that communications to the police are within SLAPP."]; see also Walker v. Kiouisis (2001) 93 Cal.App.4th 1432, 1439.) However, where a defendant concedes or the evidence conclusively establishes that the asserted protected conduct was illegal as a matter of law, the defendant is precluded from invoking the anti-SLAPP statute. (Flatley v. Mauro (2006) 39 Cal.4th 299, 314-320; Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696 [finding "admittedly" false police report is illegal under Penal Code section 148.5 is not protected activity for anti-SLAPP purposes].)

"[T]he filing of a civil harassment petition constitutes protected activity." (Kenne v. Stennis (2014) 230 Cal.App.4th 953, 966; see also Luo v. Volokh (2024) 102 Cal.App.5th 1312; Thomas v. Quintero (2005) 126 Cal.App.4th 635.)

Plaintiff's complaint is grounded in allegations concerning filing a police report and a petition for an Elder Abuse Restraining Order. However, a review of the admissible evidence demonstrates Defendant filed his police report and the petition for a

restraining order in good faith, and Defendant makes no admission that the police report or the statements in the petition were false.

Under the Elder Abuse and Dependent Adult Civil Protection Act, a petitioner seeking an elder abuse restraining order must demonstrate, by a preponderance of the evidence, reasonable proof of a past act or acts of abuse against a qualifying elder.

(Welf. & Inst. Code, § 15657.03; Welf. & Inst. Code, § 15610.07

[abuse includes financial abuse, such as taking property for wrongful use in order to defraud]; Gdowski v. Gdowski (2009) 175 Cal.App.4th 128.)

Defendant is 72 years old and presents evidence, demonstrating he believed his police report and restraining order petition were made in good faith. Defendant presents his declaration and the declaration of his stepdaughter Aldercy Denise Velazquez. (Declaration of Otavio Peres Fontes; Declaration of Aldercy Denise Velazquez.)

Defendant claims Plaintiff initiated a romantic relationship with him in late November of 2025^[1] while he was fixing a light in her apartment unit.

(Fontes Decl. ¶ 3.) When

Defendant returned the next day to continue working on the light, Plaintiff initiated kissing and hugging him which lasted several minutes. (Id. ¶ 4.) Defendant claims she never asked him to stop. Plaintiff and Defendant engaged in further kissing and touching on other occasions. (Id. ¶¶ 5-6.) At one point, Plaintiff told Defendant she felt guilty because she knows Defendant's wife.

(Id. ¶ 6.) After this

discussion, there were no further encounters and the next day, Plaintiff told Velazquez about the relationship. (Id.

¶ 7.)

Aldercy Denise Velazquez claims that on October 1, 2025,

Plaintiff showed her a video in which Plaintiff and Defendant were heard discussing

kissing, Defendant being married, and doing something intimate. (Velazquez Decl. ¶¶ 3-5.) Plaintiff asked Velazquez if it was weird

that she did not want her relationship with Defendant to end, stated he had

grown on her, and that she had been with older men before. (Id. ¶ 6.) According to Velazquez, Plaintiff did not mention being touched inappropriately or that Defendant sexually assaulted or abused her. (Id.) Plaintiff then asked Velazquez if she was

going to tell her children about the relationship to which Velazquez responded “no.” (Id.) Two days later, Plaintiff showed Velazquez’s children a message on her phone which said, “if your family did something wrong, would you want to know.” (Id.)

¶ 8.) Velazquez told Plaintiff she had broken her trust and crossed a boundary with her children. (Id. ¶ 9.) Plaintiff apologized, and Velazquez recommended that she see a therapist. (Id.)

¶¶ 10-11.) Plaintiff stated therapy was not for her, that her mother was a therapist, and that Plaintiff had been in psychiatric wards before. (Id. ¶ 11.)

On October 6, 2025, Plaintiff mailed and emailed a demand letter to Defendant. (Velazquez Decl. ¶ 12; Fontes Decl. ¶ 8, Exh. 1 at pp. 16-20.) The demand letter listed various claims against Defendant, including a criminal violation and sexual battery under Penal Code section 243.4 and violations of Civil Code section 1708.5 (“Sexual Battery”). (Id. ¶¶ 10-12.) Plaintiff also claimed Defendant made unwanted intentional sexual contact, she kept Defendant’s secret out of grace to his family, and requested \$50,000 plus a one-half rent reduction for twelve months. (Id. ¶¶ 9, 11-12.) If Defendant did not accept the demand within ten business days, Plaintiff would proceed with legal action under the Penal Code, Civil Code, file complaints with the Department of Fair Employment and Housing, and a civil lawsuit for harassment, battery, and damages. (Id. ¶ 13.)

On October 8, 2025, Plaintiff texted Velazquez multiple times. (Velazquez Decl. ¶ 13.) Plaintiff compared Defendant to public figures accused of misconduct and repeatedly accused Velazquez of minimizing or protecting Defendant because he was family. Plaintiff also referenced Velazquez’s Christian faith, her profession as a therapist, and repeatedly criticized her response to Plaintiff’s allegations. Velazquez told her that because she had already sent a formal demand letter, the matter should be handled through legal channels and reminded her about her prior communications with Velazquez’s children and asked her not to contact them again.

After Velazquez expressed concern about Plaintiff’s behavior and learning Plaintiff had contacted Velazquez’s children, Defendant

made an extortion report with the Los Angeles Police Department (LAPD) on October 10, 2025. (Fontes Decl. ¶ 17, Exh. 2 [Investigative Report].)

On October 11, 2025, Plaintiff sent Velazquez an unsolicited group text using an unknown phone number, stating: “Bc I told the truth about wrong behavior which was against the law.. im being cut off from the dogs and the laundry room?” “This isn’t right at all...” “thanks for showing your true colors.” (Velazquez Decl. ¶¶ 14-15 [texting Velazquez’s husband, daughters, and son].)

On October 13, 2025, Defendant met with LAPD Detective Montero who advised Defendant to obtain a restraining order against Plaintiff. (Fontes Decl. ¶ 18.)

On October 15, 2025, Defendant filed a petition for restraining order against Plaintiff. (Declaration of Otavio Peres Fontes ¶ 1, Exh. 1 [Otavio Peres Fontes v. Nicole Marie Tan Molano, Los Angeles Superior Court, Case No. 25CHRO02041].) The petition mentioned that Plaintiff was a tenant at Defendant’s rental property; that the two had a brief romantic relationship; that Detective Montero informed Plaintiff not to contact Defendant and his family; that Plaintiff continued making such contacts; Defendant’s resulting stress and emotional distress; the extortion; and the messages in Plaintiff’s demand letter. (Id. ¶¶ 21-22.) Defendant claims he believed, and still believes, Plaintiff was and would continue to extort and harass him and his family. (Fontes Decl. ¶ 20.)

After Defendant filed his petition, Plaintiff continued putting Velazquez into group texts. (Velazquez Decl. ¶ 21.) On October 21, 2025, Plaintiff sent Velazquez additional unsolicited and lengthy group texts about the police report, claiming Velazquez’s statements to the police could cost Velazquez her license, and aligning with Defendant was illegal. (Id. ¶¶ 16-18 [texting Velazquez’s husband, daughters, and son].) Plaintiff also claimed she had documented both Velazquez and Defendant. Plaintiff stated in one text, “Don’t underestimate me,” which Velazquez took as a threat of future conduct if Velazquez did not align with Plaintiff on the police report. Velazquez told Defendant about Plaintiff’s

threat concerning her license.

Due to the repeated contacts, Velazquez believes Plaintiff is unstable and a danger to both Velazquez and Velazquez's family. (Velazquez Decl. ¶ 19.) Plaintiff changed her story from her having a romantic relationship with Defendant to one in which she said he had sexually assaulted her.

The petition for a restraining order was denied in December of 2025.

Plaintiff contends the conduct is not protected activity but retaliation without any legitimate need for protection. Plaintiff also claims Defendant's post-filing conduct (voluntarily initiating contact with Plaintiff) creates triable issues concerning whether there was claimed fear, probable cause, and good faith for filing the report and petition. However, Plaintiff fails to present admissible evidence to dispute Defendant's claims.[2]

Thus, Defendant has demonstrated that filing the police report, filing the restraining order petition, and maintaining the petition until its denial are protected activity.

Because Defendant has not conceded to making false reports and filing a false restraining order petition and the evidence does not demonstrate the filing of the police report and the petition was illegal as a matter of law, the court finds that the alleged conduct is protected activity.

2. Arise out of

"A claim arises from protected activity when that activity underlies or forms the basis for the claim." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) Courts must consider the elements of each cause of action and whether Defendant sufficiently identified the protected activity each cause of action rests on. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.) Filing an action after protected activity occurred "does not mean the action arose from the activity for the purposes of the anti-SLAPP statute." (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) "Moreover, that a cause of action arguably may have been 'triggered' by

protected activity does not entail it is one arising from such. . . . the critical consideration is whether the cause of action is based on the defendant's protected free speech or petitioning activity." (Ibid.; see *Wong v. Wong* (2019) 43 Cal.App.5th 358, 367.) If the allegations referring to protected activity are only incidental to a cause of action based essentially on nonprotected activity, collateral references to protected activity should not subject the cause of action to the anti-SLAPP statute. (*Martinez v. Metabolife Int'l, Inc.* (2003) 113 Cal.App.4th 181, 188.)

Defendant contends each cause of action in the First Amended Complaint arises from protected activity of filing a police report and filing a petition for a restraining order. Plaintiff does not oppose that the subject activity is protected.

Plaintiff's First, Third, and Fourth causes of action primarily arise from Defendant filing a police report, filing a petition for a restraining order, and maintaining the petition for the restraining order. (FAC ¶¶ 19-22; FAC at pp. 4:15-6:4.) Plaintiff's Second Cause of Action arises in part from filing a petition for a restraining order, making "defamatory claims through court filings and police reports," and attempting to use the restraining order to force Plaintiff to vacate her housing unit. (FAC at p. 3:22-23, 3:24-25.)

In support of her First Cause of Action (malicious prosecution), Plaintiff incorporates by reference the general allegations and alleges "Defendant's purpose in filing the case was not legitimate protection, but to retaliate and defame Plaintiff." (FAC ¶¶ 19, 22). According to Plaintiff, Defendant "initiated and maintained a restraining order proceeding against Plaintiff with malice and without probable cause." (Id. ¶ 20.)

In support of her Second Cause of Action (retaliation), Plaintiff incorporates by reference the general allegations and the malicious prosecution allegations. (FAC at p. 3:16.) Plaintiff further alleges she was a tenant, residing at property owned and controlled by Defendant, that in retaliation to exercising her lawful rights through the demand letter Defendant cut off her access to laundry services and domestic animals, and Defendant attempted to use the restraining order to force her to vacate the housing unit. (FAC at pp. 3:2-4:8.)

In support of her Third Cause of Action (defamation - slander), Plaintiff incorporates by reference the general allegations, the malicious prosecution allegations, and the retaliation allegations. (FAC at p. 4:16.) Plaintiff also alleges Defendant made false, unprivileged oral statements with actual malice to third parties, including in public court documents and verbal accusations, alleging Plaintiff was unstable, threatening, and engaging in extortion. (Id. at p. 4:17-19.) As a result, Plaintiff claims she suffered reputational harm. (Id. at p. 4:20.)

In support of her Fourth Cause of Action (intentional infliction of emotional distress), Plaintiff incorporates by reference the general allegations, the malicious prosecution allegations, the retaliation allegations, and the defamation allegations. (FAC at p. 5:3.) Plaintiff also alleges Defendant's actions were outrageous and extreme; intended to cause or performed with reckless disregard of the probability of causing, severe emotional distress; and that she has experienced anxiety, shame, humiliation, insomnia, depression, and fear as a result. (Id. at p. 5:4-9.) Plaintiff also alleges on November 5, 2025, Defendant admitted to Plaintiff he could not drop the restraining order because his wife and stepdaughter. (Id. at p. 5:11-13.) Plaintiff believes Velazquez is the puppet master. According to Plaintiff, Velazquez claims Plaintiff showed her a video and never discussed the inappropriate misconduct despite text messages that show otherwise. (Id. at p. 5:23-27.) Velazquez also presented a text message of Plaintiff saying she would have sex with Defendant. (Id. at p. 5:27-28.) Moreover, Plaintiff claims Defendant never blocked her and initiated contacts with Plaintiff before the court dates on the restraining order. (Id. at p. 6:2-3.)

As pleaded the First, Third, and Fourth Causes of Action arise from protected activity.

However, the Second Cause of Action arises from protected activity and unprotected activity—Defendant also cut off her access to laundry services and domestic animals and attempted to evict her in retaliation the demand letter. Where allegations referring to protected activity are only incidental to a cause of

action based essentially on nonprotected activity, collateral references to protected activity should not subject the cause of action to the anti-SLAPP statute. (*Martinez v. Metabolife Int'l, Inc.* (2003) 113 Cal.App.4th 181, 188.) Here, the Second Cause of Action is equally supported by protected activity and unprotected activity.

Accordingly, Defendant sufficiently alleges the First, Third, and Fourth Causes of Action arise solely from protected activity.

C. Second

Step: Plaintiff fails to meet her burden of demonstrating a probability of success on the merits of any of her First, Third, and Fourth Causes of Action.

The second step of the anti-SLAPP analysis is a “summary-judgment-like procedure” limited to whether “the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. [The court] accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. Claims with the requisite minimal merit may proceed.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385, citations omitted.) Plaintiff need only make a showing of minimal merit by presenting evidence addressing the key facts of each claim. (*Grewal v. Jammu* (2011) 191 Cal.App.4th 977, 990-994 [find plaintiff met burden on libel claim by submitting prima facie evidence supporting elements].)

“It is the responsibility of . . . the party opposing the anti-SLAPP motion[] to organize the evidence and develop its arguments at the second step of the analysis.” (*Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 50.) It is not the court’s “job to sift through mountains of evidence and figure out whether they support each element of a prima facie case.” (*Ibid.*) Nor is it the court’s job “to supply the legal authority and analytical framework to determine the legal sufficiency of the claims.” (*Ibid.*)

Plaintiff contends her evidence demonstrates she is likely to prevail on the merits of her claims.

However, Plaintiff fails to meet her burden

of showing even a minimal probability of success on the merits. Plaintiff cites various case law analyzed by Defendant in his motion; quotes the California Rules of Professional Conduct and the Business and Professions Code to demonstrate Defendant and his counsel have made false statements; and presents no admissible affidavits or evidence demonstrating she can prevail on all elements of her causes of action.

Moreover, the Litigation Privilege (Civil Code section 47, subdivision (b)) applies to both the police report and the petition for the restraining order.

1. Litigation Privilege

The litigation privilege arises when litigation is “contemplated in good faith and under serious consideration as a means of obtaining access to the courts for the purpose of resolving the dispute.” (Haneline Pacific Properties, LLC v. May (2008) 167 Cal.App.4th 311, 319.) The privilege does not apply to statement made as a “tactical ploy to negotiate a bargain.” (Edwards v. Centex Real Estate Corp. (1997) 53 Cal.App.4th 15, 36.) “A plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege codified in Civil Code section 47.” (Flickinger v. Finwall (2022) 85 Cal.App.5th 822, 840.)

The litigation privilege applies to any communication “(1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.” (Medallion Film LL v. LLC v. Loeb & Loeb LLP (2024) 100 Cal.App.5th 1272, 1290.) The privilege applies to statements made during a trial or other proceedings and may also apply to “steps taken prior thereto, or afterwards. . . . The privilege is absolute and applies regardless of malice.” (Ibid. [quoting Flickinger, supra, 85 Cal.App.5th at p. 840].)

As mentioned above, Plaintiff presents no admissible evidence demonstrating the police reports and the petition for the restraining order were false or contained false statements, that Defendant admits the statements are false, or that the filing and maintaining the documents are illegal.

As such, Plaintiff cannot prevail on her First, Third, and Fourth Causes of Action because the litigation privilege bars allegations as to the police report and the restraining order petition.

Therefore, the court grants Defendant's Special Motion to Strike as to the First, Third, and Fourth Causes of Action from the First Amended Complaint.

For the same reasons, the court strikes the allegations referencing the police report and the restraining order from the Second Cause of Action.

2. Second Cause of

Action: Retaliation in violation of Civil Code section 1942.5

"[I]t is unlawful for a lessor to increase rent, decrease services, cause a lessee to quit involuntarily, bring an action to recover possession, or threaten to do any of those acts, for the purpose of retaliating against the lessee because the lessee has lawfully organized or participated in a lessees' association or an organization advocating lessees' rights or has lawfully and peaceably exercised any rights under the law. In an action brought by or against the lessee pursuant to this subdivision, the lessee shall bear the burden of producing evidence that the lessor's conduct was, in fact, retaliatory." (Civ. Code, § 1942.5, subd. (d).)

Plaintiff fails to demonstrate a minimal probability of prevailing on the merits of her Second Cause of Action (retaliation) based on the alleged unprotected activity—cutting off Plaintiff's access to laundry services and domestic animals.

Defendant's evidence demonstrates that after Plaintiff served her demand on October 6, 2025, Velazquez and her husband ended an agreement with Plaintiff where she would walk Velazquez's dogs in exchange for using washer and dryer services. (Fontes Decl., Exh. 3 [notice sent on October 13, 2025 the day Defendant filed a police report].) At first glance, this indicates retaliation at least by Velazquez. However, the notice states the laundry-dog arrangement was not part of the original lease agreement. Moreover, the notice represents the dogs and washer and dryer are owned by Velazquez and her husband, rather than Defendant. Plaintiff

fails to allege that Defendant instructed Velazquez to end the arrangement and presents no evidence establishing any such conduct by Defendant.

Therefore, the court also grants Defendant's Special Motion to Strike the Second Cause of Action from the First Amended Complaint.

D. Defendant is entitled to attorney fees under section 425.16, subdivision (c)(1).

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs" reasonably incurred in connection with litigating the motion. (Code Civ. Proc., § 425.16, subd. (c)(1); Six4Three, LLC v. Facebook, Inc. (2025) 109 Cal.App.5th 635, 660; 569 East County Boulevard, LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 433 [not including matters unrelated to the anti-SLAPP motion].)

Defendant seeks \$11,325 in attorney fees and \$460 in costs. (Second Suppl. Declaration of Robert C. Woodbury ¶ 5).

Attorney Robert C. Woodbury's hourly rate of \$250 is based on his 40 years of experience in civil litigation in California. (Woodbury Decl. ¶ 3.) The request includes (1) 18.4 hours researching the motion, investigating facts, communicating with the client and witnesses, drafting the motion and supporting declarations, and calendaring the motion—\$4,600; (2) \$460 in filing fees; (3) 13.7 hours reviewing the opposition and preparing and drafting a reply and supporting papers—\$3,425; (4) 7.5 hours reviewing and responding to Plaintiff's subsequent filings—\$1,875; and (5) 3.0 hours attending a motion hearing—\$750. (6/1/26 Declaration of Robert C. Woodbury ¶¶ 2, 5; First Suppl. Declaration of Robert C. Woodbury ¶ 10; Second Suppl. Woodbury Decl. ¶¶ 4-9.)

After reviewing the supporting declarations, the court finds counsel's hourly rate is reasonable but reduces the time requested for attending the motion hearing to 1.0 hour.

Therefore, the court grants Defendant's

request in the reduced amount of \$10,610: \$10,150 in attorney fees and \$460 in filing fees.

CONCLUSION and ORDER

Defendant's special to strike the First Amended Complaint is granted.

Attorney fees of \$10,150 and costs of \$460 are granted.

Plaintiff is ordered to pay Defendant's counsel within thirty (30) days of the date of this order.

Defendant to give notice.

[1] The court infers this is a typo because November of 2025 postdates Plaintiff's statement to Velazquez, the police report, and the filing of the restraining order petition.

[2] Plaintiff's supporting declaration fails to state whether the information therein is within her personal knowledge and fails to authenticate the attached Exhibits. Moreover, Plaintiff failed to sign her declaration under penalty of perjury.